

Present:***Mr. Justice Md. Kamrul Hossain Mollah*****CIVIL REVISION CASE NO. 3411 of 1993****IN THE MATTER OF:*****An application under Section 115 of the Code of Civil Procedure.*****IN THE MATTER OF:*****Mohammad Mokhlesur Rahman and others******..... Plaintiffs- respondents-Petitioners******Vs******The People's Republic of Bangladesh, represented by Deputy Commissioner, Feni******.....Defendant-appellant-opposite party.******Ms. Umme Masumun Nesa, A.A.G******... Defendant-appellant-opposite party.*****Heard on:19.07.2023 &****Judgment on: 20.07.2023.****Md. Kamrul Hossain Mollah,J:**

In an application under section 115 of the Code of Civil Procedure, 1908, the petitioners obtained the instant Rule in the following terms:

Let a Rule be issued calling upon the opposite party to show cause as to why the judgment and decree complained in this petition moved in Court today should not be set aside and/or such other or further order or order passed as to this Court may seem fit and proper.

The petitioners herein as plaintiffs filed Title Suit No. 10 of 1985 before the Court of Upazila Munsif, Parashuram, Feni (now

thana Assistant Judge, Parashuram) against the present opposite party on 19.03.1985 for declaration of title in the suit property.

The facts relevant for disposal of this revision case are as follows:

The suit property was originally belonged to one Madhab Chandra by C.S. Khatian and thereafter, Arpan Chandra and his two brothers and Nitaicharan and others by way of inheritance and on the basis of a decree of a partition suit being No.194 of 1922 and decree dated 21.08.1922 of 1st Munsif Court became owner and possessor of the said land. Thereafter, those Arpan Chandra and others sold out 40 decimals land to Shashi Kumar vide sale Deed dated 02.11.1925 and that thereafter, those Arpan Chandra, Shashi Kumar and others sold out the entire land of the schedule to the father of the plaintiff Nos.3 and 4, namely Abdul Latif by executing and registering exchange sale deed dated 30.11.1958 and 17.03.1959 respectively with obtaining due permission from the then Sub-Divisional Officer, Feni. Thereafter, after the death of the father of the plaintiff-petitioner Nos.3 and 4, they sold out 88 decimals of land to the plaintiff-petitioner Nos.1 and 2 by executing and registering a sale deed dated 09.03.1983. Out of that land, in respect of 65 decimals comprising plot Nos. 1046 and 1051 it was recorded in respect of none. But the other land amounting 10.8

decimals comprising plot Nos. 1045, 1050, 1052 and 1057 were wrongly recorded in the name of the Government instead of the plaintiff-petitioners. The defendant opposite party had no right, title interest and possession over the suit land. Due to that wrong publication of the S.A. Khatian in the name of the opposite party there has been created cloud in the title of the petitioners. Knowing on 12.06.1984 about wrong entry in the said khatian, the petitioner filed the above case.

On the other hand, the sole defendant opposite party contested the suit by filing written statement denying the whole story of the plaintiff and stating inter alia that the suit is barred by limitation. It is further stated admitting that the suit land was the Khas possessed land of the original land lord and after state acquisition the land developed upon Government of Bangladesh and the original owner did not settle the said property to any body else. The petitioners by creating partition deed and other deeds in their favour claiming the property and their alleged date of knowledge dated 12.06.1984 is false. Hence the suit be dismissed with cost.

During course of trial, the plaintiff-petitioners examined 3 witnesses as PW.1, 2, 3 including plaintiff-petitioner No.4. On the other hand, the opposite party examined only one witness as DW.

After concluding the trial of the case, perusing the record, the learned trial Court decreed the suit in favor of plaintiff-petitioners vide his judgment and decree dated 31.12.1986 and 22.02.1986 respectively.

Being aggrieved thereby, the defendant-appellant-opposite party as appellant filed Title Appeal being No. 58 of 1986 before the Court of learned District Judge and thereafter learned Subordinate Judge, Feni, after hearing the appeal allowed the appeal by his judgment and decree dated 31.10.1993 and 04.11.1993 respectively.

Being aggrieved by and dissatisfied with the impugned judgment and decree 31.10.1993 and 04.11.1993 respectively, the plaintiff-respondent-petitioners moved this Court by filing an application under section 115 of the Code of Civil Procedure and obtained the instant Rule.

No one appears for the plaintiffs-respondents-petitioners although it has appeared in the daily cause list.

On the other hand, Ms. Umme Masumun Nesa, Assistant Attorney General for the State submitted that the Court of appeal was within its authority and rightly passed the judgment and decree dated 31.10.1993 and 04.11.1993 respectively in Title Appeal

No.58 of 1986 allowing the appeal by reversing the judgment and decree dated 31.12.1985 and 22.02.1986 respectively passed by the learned Upazila Munsif, Parashram, Feni (now then Assistant Judge, Parashuram) in Title Suit No. 10 of 1985 and there is nothing to interfere in this order by this Court and as such the Rule is liable to be discharged

I have heard the submission of the learned Assistant Attorney General for the State, perused the impugned order, relevant application, testimony of the PWs and DWs, grounds taken therein as well as documents annexed herewith.

On perusal of the same, the plaintiffs-respondents-petitioners claimed that they are the owners of the suit land by purchase and also claimed that the suit land was wrongly recorded in the name of defendant No. 1 in suit khatian,

It also appears that, though the plaintiffs-respondents-petitioners claimed that the father of plaintiffs-respondents-petitioners Nos. 3 and 4 purchased the suit land and they sold the suit land vide deed dated 17.03.59 (Exhibit-4) to plaintiff-respondents-petitioners Nos.1 and 2. Considering the Exhibit-4, it is found that this an exchanged deed in between the father of the plaintiff Nos. 3 and 4 and Sree Annodacharan Mohajon and others

but it is found that there is not mentioned any official Sharok number and date of approval by the concerned DC office that is the deed was not properly approved by the government. Although, the plaintiffs-respondents-petitioners claimed that the father of the plaintiffs-respondents-petitioners No.3 and 4 purchased the suit land vide order No. 3528 dated 11.12.50 by S. D. O which is mentioned in the said deed (Exhibit- 4), but the plaintiffs-respondents-petitioners did not submit any certified copy of that order. So, in the absence of evidence as to whether the plaintiffs actually executed the said transferable sabkabala deed with the approval of the Government on 17.3.59, it is clear that the said sabkabala deed was not actually acted upon. Therefore, according to Exhibit-4, no right, title and interest has arisen on the basis of the deed executed by the plaintiff-respondent Nos. 3 and 4 on 8.3.83 and registered on 9.3.83 to the plaintiffs-respondents-petitioners Nos.1 and 2.

It is pertinent to mention that the plaintiffs-respondents-petitioners Nos. 3 and 4 have always been claiming that they inherited the suit land from their father. But the plaintiffs-respondents-petitioners Nos. 3 and 4 in support of their claim did not submit any rent receipt regarding the suit land. So, it is presumed that the plaintiffs-respondents-petitioners Nos. 3 and 4

was previously aware of the decree in Khas Khatian No. 1, as no rent has been collected in respect of suit land for a long time.

The plaintiffs-respondents-petitioners have been claiming title over the suit land on the basis of the order of the Civil Court and a perusal of Exhibit-4 related to the suit deeds shows that the said Exhibit-4 deed was filed before the Sub-Registrar for distribution on 17.3.59 and the said case No. 13 dated 1969 was canceled according to the refusal order, then the said deed dated 15.7.60 was registered by 1st Munsif Court, Feni in Case No. 10/1960 dated 14.7.60. But, the plaintiffs-respondents-petitioners did not submit any certified copy of that order with attested seal related to the case of the concerned Civil Court in respect of the Registry. As a result, it is not clear whether which persons were made party or the government was made party or not regarding the said order. However, according to the provisions of Section 17 of the Registry Act there is no obligation that title will be transferred only on registration, but other related matters are partially involved in the transfer of ownership through the registry. After the partition of India in 1947, the land owners who have claimed the land through exchange of property with Indian land owners need the approval of the relevant authorities of the government. But, it appears that in the Exhibit-4 deed, no source of Noakhali District

Collector's office is mentioned and in the judgment of the 1st page of the Deed, the order No. 3528 dated 11.12.50 by S.D.O has been mentioned. But as the Government did not approve or consent to the validity of the plaintiffs-respondents-petitioners' Exhibit: 4 deed, it was not actually acted upon. As a result, on the basis of the said deed, the plaintiffs-respondents-petitioners Nos. 3 and 4 transferred the suit land vide deed which was executed on 8.3.83 and registered on 9.3.80 to the plaintiffs- respondents-petitioners Nos. 1 and 2 has no validity.

In light of discussion made and consideration made here above, this Court is led to find that the Appellate Court below rightly passed the impugned judgment and decree, the appellate Court below appears not to have committed any error of law resulting in any error in the impugned order occasioning any failure of justice.

This Court finds no merit in the Civil Revision Case for which the order warrants no interference by this Court and as such, the Rule is liable to be discharged.

In the result, the Rule is discharged without any order as to costs.

The impugned judgment and decree dated 31.10.1993 and 04.11.1993 respectively passed by the Subordinate Judge, Feni in Title Appeal No. 58 of 1986 reversing the judgment and decree dated 31.12.1985 and 22.02.1986 respectively passed by Upazila Munsif, Parashuram, Feni (now then Assistant Judge, Parashram) in Title Suit No. 10 of 1985 decreeing the suit is hereby upheld and confirmed.

Let the L.C.R. along with a copy of this judgment be transmitted down at once.

Md. Mustafizur Rahman
Bench Officer